

What is evident in the first 15 pages is that Defendant failed to comply with its discovery obligations. Counsel did not respond to any meet and confer attempts, and did not make a good faith attempt to respond to discovery. Plaintiff provided a declaration outlining a one-sided attempt to meet and confer, and Defendant did not rebut that with any declaration at all. Moreover, while some document requests may be capable of overbroad interpretations, the obligations do not stop there. They must produce relevant responsive documents that are within the scope of the request, while rightfully refusing to produce non-relevant or privileged documents, and explaining the process. Moreover, Defendants cannot decline to produce documents based on a professed misunderstanding of basic terms without offering their own definition and producing documents consistent with that definition. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783 “A party may not deliberately misconstrue a question for the purpose of supplying an evasive answer. Indeed, where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response.”)

Plaintiff’s motion is granted. The court orders sixty days to comply with this order. Defendant Teranexsys LLC shall serve code-compliant, objection free, verified responses, along with responsive documents for the following: Requests for Production of Documents – Set One.

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, “without substantial justification, an unmeritorious objection to discovery, “ to make “an evasive response to discovery” and to make or oppose “unsuccessfully without substantial justification a motion to compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally. Cal. Code of Civ. Proc. § 2023.020 states that the Court “shall impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” In this case, in light of everything discussed above, Sanctions in the amount of \$3,500 are granted and payable by Defendant within 20 days of service of this order.

12. 9:00 AM CASE NUMBER: MSC21-00588
CASE NAME: SHARMA VS. ARS ALEUT CONSTRUCTION
HEARING ON SUMMARY MOTION JUDGMENT RE PLTFS CLAIMS
FILED BY: AMERICAN EQUIPMENT COMPANY
TENTATIVE RULING:

Continued by the Court’s own motion to April 23, 2026 at 9:00 a.m. in this Department.

13. 9:00 AM CASE NUMBER: MSC21-00588
CASE NAME: SHARMA VS. ARS ALEUT CONSTRUCTION
HEARING ON SUMMARY MOTION JUDGMENT RE NORCAL'S AND PETERSON HOLDING COMPANY'S CLAIMS
FILED BY: AMERICAN EQUIPMENT COMPANY
TENTATIVE RULING:

Continued by the Court’s own motion to April 23, 2026, at 9:00 a.m. in this Department.

14. 9:00 AM CASE NUMBER: N25-0353

CASE NAME: MARC JOFFE VS. KRISTIN CONNELLY

***HEARING ON MOTION IN RE: FOR AWARD OF REASONABLE ATTORNEYS' FEES AND COSTS**

FILED BY: JOFFE, MARC

TENTATIVE RULING:

Petitioners Marc Joffe et al. move pursuant to Code of Civil Procedure section 1021.5 for attorneys' fees against Respondents Kristin B. Connelly, in her official capacity as Contra Costa County Clerk-Recorder and Registrar of Voters, and Real Parties in Interest Governing Board of the Acalanes Union High School District and Acalanes Union High School District.

Via this tentative ruling, the Court discloses that she has close family members who attend or will soon attend schools within the jurisdiction of the Real Parties in Interest and is a taxpayer within that jurisdiction. The Court has thoroughly evaluated Code of Civil Procedure 170.1 and all applicable ethical rules and has determined that she is capable of being fair and impartial in this matter.

Code of Civil Procedure section 1021.5 provides:

Upon motion, a court may award attorneys' fees to a successful party against one or more opposing parties in any action which has resulted in the enforcement of an important right affecting the public interest if: (a) a significant benefit, whether pecuniary or nonpecuniary, has been conferred on the general public or a large class of persons, (b) the necessity and financial burden of private enforcement, or of enforcement by one public entity against another public entity, are such as to make the award appropriate, and (c) such fees should not in the interest of justice be paid out of the recovery, if any.

After a review of the parties' briefing, the Court believes that the most instructive case is *Willard v. Kelley* (2015) 238 Cal.App.4th 1049, which highlighted the distinction in election law cases between those involving broad rights and benefits, and "mundane squabbles over the factual accuracy of a statement." While the former properly merit awards under 1021.5, the latter do not. Under this standard, which has been applied in numerous cases, this case is closer to the line of "mundane squabbles over the factual accuracy of a statement" than to one affecting broad rights—such as the eligibility for office of an entire class of individuals or the interpretation of a provision of the Elections Code.¹ Moreover, given the limited scope of Petitioners' success in this matter, they are more akin to the party *against* whom attorneys' fees were awarded in one of their principle cases, *Hull v. Rossi* (1993) 13 Cal.App.4th 1763.

For the reasons stated above the Motion is **denied**.

¹ Cases such as *Early v. Becerra* (2021) 60 Cal.App.5th 726; *Vosburg v. County of Fresno* (2020) 54 Cal.App.5th 439